

TENTATIVE RULINGS

DEPT C21

LAW AND MOTION CALENDAR

Judge Deborah C. Servino

Date: May 15, 2026

Please read the applicable rules carefully. Do not call the department unless submitting on the tentative.

The court will endeavor to post tentative rulings on the Court's website by 3 p.m. on the preceding Thursday. However, ongoing proceedings may prevent posting by that time. Do not call the department for tentative rulings if none are posted. The court will not entertain a request for continuance once a ruling has been posted and no additional papers will be considered once a ruling has been posted.

If you wish to submit on the tentative and do not want to appear, please inform the clerk by calling **(657) 622-5221**, and inform opposing counsel.

The Law and Motion Calendar is heard on Fridays at 10 a.m. All arguments will be heard at that time. Unless otherwise indicated in the tentative ruling, the prevailing party will give Notice of Ruling. If no one appears for the hearing, the court shall determine whether the matter is taken off calendar or whether the tentative ruling shall become the final ruling.

APPEARANCES: The Court offers remote appearances for the Law and Motion Calendar via Zoom. All counsel and self-represented parties appearing remotely for the Law and Motion Calendar must check-in online through the Court's website at <https://www.occourts.org/media-relations/civil.html>, then click on the gold ribbon that states "Click here to appear/check-in for civil small claims/limited/unlimited/complex remote proceedings", and then click on Department C21 (to check-in). However, counsel and self-represented parties preferring to appear in-person may do so. The Court's "Appearance Procedures and Information - Civil Unlimited," "Guidelines for Remote Appearances," remote video appearance instructions, Orange County Superior Court Local Rule 375 on Remote and In-Person Proceedings in Civil, Administrative Order No. 23/06 (Updated Remote Appearance Guidelines for Civil and Probate), and an instructional video are also available through the Court's website at [The Superior Court of California - County of Orange \(occourts.org\)](https://www.occourts.org). If you encounter difficulty checking-in online or connecting remotely, please call Department C21 for assistance at (657) 622-5221.

COURT REPORTERS: Official court reporters (i.e. court reporters employed by the Court) are NOT typically provided for law and motion matters in this department. Please see the Court's website for further information. The Court's policy on privately-retained court reporters is available on the Court's website at: [Privately-Retained Court Reporter Policy](#).

No filming, broadcasting, photography, or electronic recording is permitted of the video session pursuant to California Rules of Court, rule 1.150 and Orange County Superior Court rule 180.

#	Case Name	Tentative
50	Alliance Funding Group v. Yang Noodle House, Inc., et al. 30-2024-01373426	Plaintiff Alliance Funding Group's unopposed motion to vacate dismissal is granted. <u>Relevant Background</u> On January 16, 2025, Plaintiff filed a notice of settlement of entire case. (ROA 45.) The court set a hearing on an order to show cause re: dismissal on a settled case, which was continued several times. (See 1/17/2025 Minute Order; 2/10/2025 Minute Order; 9/19/2025 Minute Order [ROA 48, 51, 56].) At the February 6, 2026 hearing, the court noted that Plaintiff did not file a request for dismissal prior to the hearing, did not appear at the hearing, and did not show good cause as to why the action should not be dismissed. Accordingly, the court dismissed the case with prejudice. (2/6/2026 Minute Order; Order After Hearing [ROA 58 & 59].) <u>Merits</u> Plaintiff seeks to vacate the February 6, 2026 dismissal of this action. Code of Civil Procedure section 473, subdivision (b) provides in relevant part: the court shall, whenever an application for relief is made no more than six months after entry of judgment, is in proper form, and is accompanied by an attorney's sworn affidavit attesting to the attorney's mistake, inadvertence, surprise, or neglect, vacate any (1) resulting default entered by the clerk against the attorney's client, and which will result in entry of a default judgment, or (2) resulting default judgment or dismissal entered against the attorney's client, unless the court finds that the default or dismissal was not in fact caused by the attorney's mistake, inadvertence, surprise, or neglect. Plaintiff has submitted its counsel's declaration as to her mistake in failing to appear at the hearing as required by the court. (Adams Decl., at ¶¶ 3-4.) The relief requested is mandatory. No opposition was timely filed. The motion for relief is therefore granted. The February 6, 2026 dismissal is hereby vacated. The court sets a hearing on an order to show cause re: dismissal on a settled case for October 9, 2026, at 9 am in this Department. Plaintiff shall give notice of the ruling and of the hearing on the OSC re: dismissal on a settled case.

51	Arashfar v. Trieu 30-2026-01544986	Hearing on motion to transfer case off-calendar per 5/13/2026 Order.
52	Flores-Garcia v. Nissan North America, Inc. 30-2024-01435508	Defendant Nissan North America, Inc.'s motion to compel Plaintiff Jorge I. Flores-Garcia to provide further deposition testimony and to produce additional documents, is granted in part and denied in part. The motion is granted as to further deposition testimony and denied as to production of documents. Code of Civil Procedure section 2025.480, subdivision (a) states: "If a deponent fails to answer any question or to produce any document, electronically stored information, or tangible thing under the deponent's control that is specified in the deposition notice or a deposition subpoena, the party seeking discovery may move the court for an order compelling that answer or production." A deponent who has objected to a question and refused to answer bears the burden of justifying such refusal on the motion to compel. (Weil & Brown, Cal. Practice Guide: Civil Procedure Before Trial (The Rutter Group 2025) ¶ 8:814; see <i>San Diego Professional Assn. v. Superior Court of San Diego County</i> (1962) 58 Cal.2d 194, 199 ["The burden of establishing that a particular matter is privileged is on the party asserting that privilege."].) Contrary to Plaintiff's assertion, the motion does not ask for an open-ended further deposition. Instead, Defendant only seeks "deposition testimony related to questions in which testimony was withheld." (Not., at p. 1:24-26.) At the deposition, Plaintiff's attorney instructed Plaintiff not to answer the following questions: 1) What is this document? (Do Decl., Exh. B, at p. 17:13.) 2) When was the first time that you saw this document? (Do Decl., Exh. B, at p. 18:9-10.) 3) Did you write this letter? (Do Decl., Exh. B, at p. 18:17.) 4) Have you seen this document before? (Do Decl., Exh. B, at p. 33:18.) 5) Do you see that? (Do Decl., Exh. B, at p. 34:8-9.) (See also, Sep. Stmt.) Plaintiff's counsel objected to these questions on the basis of attorney-client privilege. Plaintiff's counsel also objected to the first question on the ground that the document speaks for itself. (Do Decl., Exh. B, at pp. 17-18, 33-34.) Plaintiff did not justify his objections to these questions. Specifically, Plaintiff has not shown that any of these questions were seeking responses that would be covered by

		the attorney-client privilege. In his opposition, Plaintiff also opposes the motion as to the third question on the ground of attorney work product. However, Plaintiff did not object on this ground during the deposition and has waived that objection. (See Do Decl., Exh. B, at p. 18; Code Civ. Proc., § 2025.460, subd. (b); <i>Boler v. Superior Court</i> (1987) 201 Cal.App.3d 467, 472, fn. 1 [an “objection to a deposition question must state the specific ground, and unstated grounds are waived”].) Even if the objection had not been waived, Plaintiff did not show how the letter, signed by Plaintiff and sent to Defendant, would be protected by attorney work product. Defendant’s motion to compel further deposition is granted. Within 14 days of the notice of ruling, Plaintiff is ordered to appear for a further deposition to answer these five questions and any follow-up questions related to these five questions, unless Defendant agrees to a later date. As for the documents, Defendant did not identify which document request was at issue. Defendant also failed to include any document request in the separate statement. Accordingly, the motion to compel production of documents at the ordered further deposition is denied. Finally, the court notes that trial is scheduled to commence on June 1, 2026. Counsel should be prepared to address whether they are requesting a brief continuance of trial. The court does not contemplate continuing any pretrial-related dates, except for Plaintiff’s further deposition. The parties, however, may stipulate to a continuance of pretrial-related dates. Defendant shall give notice of the ruling.
53	Garcia v. The City of La Habra 30-2025-01526721	Case management conference and hearing on demurrer vacated per 5/11/2026 Order.
54	Gath v. City of Mission Viejo 30-2024-01376969	Hearing on motions to compel responses to requests for admissions off-calendar. Notices of withdrawal of motions filed 5/5/2026.
55	Groat v. Walsh, et al. 30-2025-01526286	Defendants Eric Walsh and Walshmo Racing LLC’s demurrer to Plaintiff Nicholas Groat’s First Amended Complaint (“FAC”) is sustained in part and overruled in part. The demurrer as to the third cause of action is sustained with 15 days leave to amend. The demurrer as to the fourth and fifth causes of action is overruled. <u>Breach of Implied Covenant of Good Faith and Fair Dealing (Third Cause of Action)</u>

"Every contract imposes on each party an implied duty of good faith and fair dealing. Simply stated, the burden imposed is 'that neither party will do anything which will injure the right of the other to receive the benefits of the agreement.'" (*Chateau Chamberay Homeowners Assn. v. Associated Intern. Ins. Co.* (2001) 90 Cal.App.4th 335, 345, citations omitted.) The covenant functions "as a *supplement* to the express contractual covenants, to prevent a contracting party from engaging in conduct which (while not technically transgressing the express covenants) frustrates the other party's rights to the benefits of the contract." (*Thrifty Payless, Inc. v. The Americana at Brand, LLC* (2013) 218 Cal.App.4th 1230, 1244, emphasis in original.)

A breach of the implied covenant will only be found if it "involves something beyond breach of the contractual duty itself"; bad faith "implies unfair dealing rather than mistaken judgment." (*Careau & Co. v. Security Pacific Business Credit, Inc.* (1990) 222 Cal.App.3d 1371, 1394, citation omitted.) The allegations necessary to assert a claim for breach of the implied covenant must "demonstrate[] a failure or refusal to discharge contractual responsibilities, prompted not by an honest mistake, bad judgment or negligence but rather by a conscious and deliberate act, which unfairly frustrates the agreed common purposes and disappoints the reasonable expectations of the other party thereby depriving that party of the benefits of the agreement." (*Ibid.*) "If the allegations do not go beyond the statement of a mere contract breach and, relying on the same alleged acts, simply seek the same damages or other relief already claimed in a companion contract cause of action, they may be disregarded as superfluous as no additional claim is actually stated." (*Id.* at p. 1395.)

Here, Plaintiff alleges in the third cause of action the following: "The DEFENDANTS have breached the implied covenant of good faith and fair dealing by committing, and engaging in, the wrongful acts and conduct set forth herein." (FAC, at ¶ 94.) In the opposition, Plaintiff clarified that the breach is actually "Defendants' obstruction of Plaintiff's contractual benefits through prolonged delay and shifting performance." (Opp., at p. 4:20-21.) The FAC does not specifically allege this fact. But more importantly, this appears duplicative of the breach of contract claim. Timing for completion of the contract was an explicit term in the parties' agreement, although it was updated and amended.

Plaintiff argues that he pled sufficient facts to show that Defendants were invested with discretionary power to perform a full engine swap and performance integration of Plaintiff's race car, citing the FAC at paragraphs 11 through 19. But swapping the engine and the timing of that undertaking are terms in the contract. There was no

	discretion to perform or not perform those tasks. Thus, the demurrer is sustained with 15 days leave to amend. <u>Negligent Misrepresentation (Fourth Cause of Action)</u> "Negligent misrepresentation is a separate and distinct tort, a species of the tort of deceit. 'Where the defendant makes false statements, honestly believing that they are true, but without reasonable ground for such belief, he may be liable for negligent misrepresentation, a form of deceit.' " (<i>Bily v. Arthur Young & Co.</i> (1992) 3 Cal.4th 370, 407; CACI no. 1903.) "Negligent misrepresentation requires an assertion of fact, falsity of that assertion, and the tortfeasor's lack of reasonable grounds for believing the assertion to be true. It also requires the tortfeasor's intent to induce reliance, justifiable reliance by the person to whom the false assertion of fact was made, and damages to that person. An implied assertion of fact is 'not enough' to support liability." (<i>SI 59 LLC v. Variel Warner Ventures, LLC</i> (2018) 29 Cal.App.5th 146, 154.) "When one of the parties possesses, or assumes to possess, superior knowledge or special information regarding the subject matter of the representation, and the other party is so situated that he may reasonably rely upon such supposed superior knowledge or special information, a representation made by the party possessing or assuming to possess such knowledge or information, though it might be regarded as but the expression of an opinion if made by any other person, is not excused if it be false." (<i>Haserot v. Keller</i> (1924) 67 Cal.App. 659, 670; <i>Palladine v. Imperial Valley Farm Lands Assn.</i> (1924) 65 Cal.App. 727, 737 [representations by vendor of land, that it was free from alkali and excellent for raising grapes and general farming purposes, constituted actionable deceit]; <i>Jolley v. Chase Home Finance, LLC</i> (2013) 213 Cal.App.4th 872, 893 [whether borrower was justified in relying on statements by bank employee that it was highly probable that loan modification would be approved was question of fact, precluding summary judgment in borrower's misrepresentation action against bank, where employee stated that he was from bank's "executives offices"].) Here, the FAC alleges that in order to induce Plaintiff to hand over more money, Defendants represented "on the phone, through text messaging, emails, and during in-person meetings between March 2022 and August 2025, made representations regarding the expertise and experience of the DEFENDANTS, and the ability of MR. WALSH to complete the Project on time." (FAC, at ¶ 96.) Plaintiff alleges and also argues that Defendants represented that they were capable, when this was not true. (FAC, at ¶¶ 52, 96; Opp., at p.
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		4:23.) In opposition, Plaintiff also argues that Defendants agreed on a shifting landscape of promises to complete the project but failed to live up to one of the promises. Yet Defendants lacked reasonable ground for believing the promises were true. (Opp., p. 14:19-22 [citing the FAC, at ¶¶ 25-78, 81-85, and 93- 95].) Thus, this claim is based on inaccurate representations of capability, progress, and timelines. The statements regarding expertise and the present status of the swap are actionable misrepresentations. Plaintiff handed over more money as the time went on and alleges that \$15,000 in new parts were “aged-out” and had to be replaced. (FAC, at ¶ 45.) The status of the work is a representation about present facts, that induced Plaintiff to spend money on parts that he otherwise would not have spent. Thus, the FAC has sufficiently alleged a claim. The demurrer as to the fourth cause of action is overruled. <u>Unfair Business Practice (Bus & Prof. Code, § 17200, et seq.) (Fifth Cause of Action)</u> Business and Professions Code section 17200, et seq. (“UCL”) prohibits unfair competition, including unlawful, unfair or fraudulent business acts. (<i>Cel-Tech Comm., Inc. v. Los Angeles Cellular Tele. Co.</i> (1999) 20 Cal.4th 163, 180.) By defining “unfair competition” to include any unlawful act or practice, the UCL permits violations of other laws to be treated as independently actionable as unfair competition. <i>Cel-Tech Communications, Inc. v. Los Angeles Cellular Telephone Co.</i>, (1999) 20 Cal.4th 163, 180.) Here, Plaintiff relies on the negligent misrepresentation claim as the basis for the unfair business practices. Thus, the court overrules the demurrer on this derivative claim. The case management conference is continued to October 9, 2026, at 9 am, in this Department. Defendants shall give notice of the ruling of the continued case management conference.
56	Merchant Capital Source, LLC v. Pima Orthopedic Physicians, LLC, et al. 30-2023-01304251	Hearing on motion to compel compliance with bank levy (reservation no. 74763450) taken off-calendar per 5/8/2026 Order.
57	Nemat, et al. v. Corselli, et al. CVRI12406049	Plaintiffs Mona Nemat and Ali Nemat’s motion to compel Defendant Stanley Wong’s further response to request for production of documents, set one, no. 1, is denied. <u>Legal Standard</u>

A party responding to an inspection demand must respond with (1) a statement that it will comply, (2) a representation that it does not have the ability to comply, or (3) an objection. (Code Civ. Proc., § 2031.210, subd. (a).) On receipt of the response to a document demand, the demanding party may move to compel a further response if any of the following apply: (1) a statement of compliance is incomplete; (2) a representation of inability to comply is inadequate, incomplete or evasive; (3) an objection is without merit or too general. (Code Civ. Proc., § 2031.310, subd. (a).)

The motion must set forth specific facts showing good cause justifying the discovery, and it must be accompanied by a separate statement. (Code Civ. Proc., § 2031.310, subd. (b); Cal. Rules of Court, rule 3.1345.) Absent a claim of privilege or attorney work product, the burden of showing good cause may be met by a fact-specific showing of relevance. (Weil & Brown, Cal. Practice Guide: Civil Procedure Before Trial (The Rutter Group 2025) ¶ 8:1495.6.) To establish “good cause,” the burden is on the moving party to show both: relevance to the subject matter (e.g., how the information in the documents would tend to prove or disprove some issue in the case); and specific facts justifying discovery (e.g., why such information is necessary for trial preparation or to prevent surprise at trial). (*Glenfed Develop. Corp. v. Superior Court* (1997) 53 Cal.App.4th 1113, 1117; see *Kirkland v. Superior Court (Guess?, Inc.)* (2002) 95 Cal.App.4th 92, 98.) “If ‘good cause’ is shown by the moving party, the burden is then on the responding party to justify any objections made to document disclosure” (Weil & Brown, Cal. Practice Guide: Civil Procedure Before Trial (The Rutter Group 2025) ¶ 8:1496.)

Merits

Plaintiffs move to compel Wong to produce documents responsive to no. 1 of their first set of request for production of documents. Plaintiffs asked Wong to produce:

All DOCUMENTS constituting or relating to insurance policies providing or potentially providing coverage for the OPEN LOT, the residence at 3841 Collis Ave., or the Apartment Building at 170 W. Avenue 26th, in effect at any time from January 1, 2022 to the present, including but not limited to: a) Policy declarations pages; b) Coverage forms; c) Endorsements; d) Exclusions; e) Premium notices; f) Correspondence with insurers.

Wong responded:

	Objection. This request is overbroad, seeks irrelevant documents, and is not proportional to the needs of the case. Discovery must be reasonably calculated to lead to admissible evidence and may not be used as a "fishing expedition" into unrelated or private matters. (<i>Calcor Space Facility, Inc. v. Superior Court</i> (1997) 53 Cal.App.4th 216, 222; <i>Colonial Life & Accident Ins. Co. v. Superior Court</i> (1982) 31 Cal.3d 785, 790.) The only property at issue in this action is the OPEN LOT. Insurance policies concerning 3841 Collis Avenue or 170 W. Avenue 26th are irrelevant. Subject to and without waiving objections, Defendant states that the OPEN LOT was not insured during the relevant time period. Accordingly, after a diligent search and reasonable inquiry, Defendant has no responsive non-privileged documents in his possession, custody, or control. Plaintiffs do not dispute that the only property at issue is the "OPEN LOT," and not the "residence at 3841 Collis Ave.," or the "Apartment Building at 170 W. Avenue 26th." However, Plaintiffs contend that insurance policies providing or potentially providing for coverage at the latter two properties are still discoverable. Plaintiffs assert that they "may obtain discovery of the existence and contents of any agreement under which any insurance carrier may be liable to satisfy a judgment against Defendant"; and this "reasonably includes policies insuring Defendant's other properties, which may extend coverage to undeveloped land like the Lot." (Mot., at p. 1 [citing Code Civ. Proc., § 2017.210; <i>Bianchi v. Westfield Ins. Co.</i> (1987) 191 Cal.App.3d 287].) However, Wong has already responded with an inability to comply on the grounds that, "the OPEN LOT was not insured during the relevant time period." Under Code of Civil Procedure section 2017.210, a party may obtain "discovery of the existence and contents of any agreement under which any insurance carrier may be liable to satisfy in whole or in part a judgment that may be entered in the action or to indemnify or reimburse for payments made to satisfy the judgment." (Code Civ. Proc., § 2017.210.) The request as drafted seeks documents "providing or potentially providing coverage for the residence at 3841 Collis Ave., or the Apartment Building at 170 W. Avenue 26th," without regard to whether they may include provisions that could apply to the subject lot. Plaintiffs have not shown good cause for this overly-broad request. Accordingly, the motion is denied. The case management conference is continued to June 5, 2026, at 10 am in this Department. Wong shall give notice of the ruling and of the continued case management conference.
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58	Sowersby v. Molina, et al. 30-2025-01513523	Defendant Lyft, Inc.'s motion for order compelling Plaintiff Justin Sowersby to arbitrate his claims against Lyft in this action, is granted. <u>The Federal Arbitration Act ("FAA")</u> The FAA (9 U.S.C. §§ 1-14) governs contractual arbitration in written contracts involving interstate or foreign commerce or maritime transactions. (9 U.S.C. §§ 1, 2.) Here, Lyft has met its burden of showing that the FAA applies. (Carr Decl., Exh. 8 § 17; see <i>Allied-Bruce Terminix Cos., Inc. v. Dobson</i> (1995) 513 U.S. 265, 277; <i>Shepard v. Edward Mackay Enterprises, Inc.</i> (2007) 148 Cal.App.4th 1092, 1097.) The delegation analysis is the same under the FAA and the California Arbitration Act. (<i>Tiri v. Lucky Chances, Inc.</i> (2014) 226 Cal.App.4th 231, 240-242.) <u>Delegation</u> Arbitration is a matter of contract. A party cannot be required to submit to arbitration any dispute which he or she has not agreed so to submit. (<i>AT&T Technologies v. Communications Workers</i> (1986) 475 U.S. 643, 648.) Plaintiff does not dispute the existence of the agreement to arbitrate but only whether the agreement to arbitrate: (1) should not be enforced due to the possibility of inconsistent results enforceable and (2) encompasses motor vehicle accidents. (See Opp., at pp. 2-9.) Lyft argues that the arbitrator, not the court, must decide if the claims in the Complaint are arbitrable. (Mot., at pp. 12-13.) Courts presume that the parties intend courts, not arbitrators, to decide disputes about arbitrability. (<i>UBC Group PLC v. Republic of Argentina</i> (2014) 572 U.S. 25, 34.) The question whether the parties agreed to arbitrate the particular dispute is to be decided by the court, not the arbitrator, unless the parties clearly and unmistakably provide otherwise. (<i>First Options of Chicago, Inc. v. Kaplan</i> (1995) 514 U.S. 938, 944; <i>Ajamian v. CantorCO2e, L.P.</i> (2012) 203 Cal.App.4th 771, 781-782.) When the parties have agreed to an arbitration provider's rules and the rules include the arbitrator's power to determine arbitrability, the parties' intent to delegate is clear and unmistakable. (<i>Greenspan v. LADT, LLC</i> (2010) 185 Cal.App.4th 1413, 1442, 1443; <i>Dream Theater, Inc. v. Dream Theater</i> (2004) 124 Cal.App.4th 547, 553, 557; <i>Aanderud v. Superior Court</i> (2017) 13 Cal.App.5th 880, 893.) Here, Lyft has presented an arbitration agreement which provides in relevant part:
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	this Arbitration Agreement applies to all Claims (defined below) between you and Lyft, Except as expressly provided below, ALL DISPUTES AND CLAIMS BETWEEN US (EACH A "CLAIM" AND COLLECTIVELY, "CLAIMS") SHALL BE EXCLUSIVELY RESOLVED BY BINDING ARBITRATION SOLELY BETWEEN YOU AND LYFT. These Claims include, but are not limited to, any dispute, claim or controversy, whether based on past, present, or future events, arising out of or relating to: this Agreement and prior versions thereof (including the breach, termination, enforcement, interpretation or validity thereof), the Lyft Platform, the Rideshare Services, the Lyft Services, Lyft promotions, gift card, referrals or loyalty programs, the Lyft Tablet, any other goods or services made available through the Lyft Platform by Lyft or a third-party provider, your relationship with Lyft, the threatened or actual suspension, deactivation or termination of your User Account or this Agreement, background checks performed by or on Lyft's behalf, payments made by you or any payments made or allegedly owed to you, any promotions or offers made by Lyft, any city, county, state or federal wage-hour law, trade secrets, unfair competition, compensation, breaks and rest periods, expense reimbursement, wrongful termination, discrimination, harassment, retaliation, fraud, defamation, emotional distress, breach of any express or implied contract or covenant, claims arising under federal or state consumer protection laws; claims arising under antitrust laws, claims arising under the Telephone Consumer Protection Act and Fair Credit Reporting Act; and claims arising under the Uniform Trade Secrets Act, Civil Rights Act of 1964, Americans With Disabilities Act, Age Discrimination in Employment Act, Older Workers Benefit Protection Act, Family Medical Leave Act, Fair Labor Standards Act, Employee Retirement Income Security Act of 1974 (except for individual claims for employee benefits under any benefit plan sponsored by Lyft and covered by the Employee Retirement Income Security Act of 1974 or funded by insurance), and state statutes, if any, addressing the same or similar subject matters, and all other federal and state statutory and common law claims. All disputes concerning the arbitrability of a Claim (including disputes about the scope, applicability, enforceability, revocability or validity of the Arbitration Agreement) shall be decided by the arbitrator, except as expressly provided below. (Carr Decl., at ¶¶ 12.f and 12.g, Exh. 8 [emphasis added].) Accordingly, the parties' intent to delegate is clear and
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unmistakable. The arbitrator must determine the issues of scope and enforceability.

To be found unconscionable and thus unenforceable, a gateway delegation in an arbitration agreement must be separately challenged as unconscionable. (*Tiri v. Lucky Chances, Inc.*, *supra*, 226 Cal.App.4th at p. 240 [citing *Rent-A-Car Jackson* (2010) 561 U.S. 63, 71-73].) Plaintiff has not separately challenged the delegation provision as unconscionable. Accordingly, the motion to compel arbitration is granted.

Code of Civil Procedure Section 1281.2

As noted by Plaintiff, there is another Defendant in this case. Plaintiff argues that pursuant to Code of Civil Procedure section 1281.2, the court should deny the motion to compel arbitration. (Opp., at pp. 2-5.) Code of Civil Procedure section 1281.2, subdivision (c) allows a court to refuse to enforce an agreement to arbitrate, if the court determines that "[a] party to the arbitration agreement is also a party to a pending court action or special proceeding with a third party, arising out of the same transaction or series of related transactions and there is a possibility of conflicting rulings on a common issue of law or fact." "Unlike the procedure in California, the FAA by its terms 'leaves no place for the exercise of discretion by a district court, but instead mandates that district courts shall direct the parties to proceed to arbitration on issues as to which an arbitration agreement has been signed.'" (*Los Angeles Unified School Dist. v. Safety National Casualty Corp.* (2017) 13 Cal.App.5th 471, 479 [quoting *Dean Witter Reynolds, Inc. v. Byrd* (1985) 470 U.S. 213, 218].) As the United States Supreme Court observed, the FAA "requires district courts to compel arbitration of pendant arbitrable claims when one of the parties files a motion to compel, even where the result would be the possible inefficient maintenance of separate proceedings in different forums." (*Dean Witter Reynolds, Inc. v. Byrd*, *supra*, 470 U.S. at p. 217; see 9 U.S.C. § 3.)

As a result, the court cannot deny the arbitration of Plaintiff's claims against Lyft, even if the result would be the possible inefficient maintenance of separate proceedings in different forums. Accordingly, Plaintiff is ordered to arbitrate his claims against Lyft. The action against Lyft is stayed pending final resolution of the arbitration. (Code Civ. Proc., § 1281.4; 9 U.S.C. § 3.) The court sets an arbitration status conference for November 13, 2026, at 9 am in this Department.

Defendant shall give notice of this ruling and of the arbitration status conference.

CASE MANAGEMENT CONFERENCE

[illegible]